

MILITARY LEAVE

Employees of the Loudoun County Public Schools must specifically request the use of Military Leave from their Supervisor and Department of Human Resources and Talent Development (HRTD) Leave & Disability Programs.

- A. Military Leave will be granted by the Chief Human Resources Officer as required by law. Requests for Military Leave should be in writing and submitted to the employee's immediate supervisor as far in advance as possible of the date on which the leave is scheduled to begin. If written leave is not available, verbal notice to the immediate supervisor and the Leave & Disability Programs office can be accepted.
- B. Forms for requesting Military Leave are available by contacting HRTD Leave & Disability Programs Office or from the Leave & Disability Programs Office website. All requests for Military Leave should be accompanied by official orders of the employee's unit commander or operation headquarters. In the case of emergency orders to service or other circumstances where orders are not immediately available, copies of the orders or other supporting documentation reflecting the time for leave, such as a Leave and Earning Statement (LES), shall be provided as promptly as possible but no later than 15 calendar days upon return. The orders must include specific beginning and ending dates of the leave. Changes in the duration of the leave will only be accepted by submission of an official amended copy of the original orders.
- C. Whenever possible, employees are asked not to schedule Military Leave during the school year.
- D. Individuals utilizing Military Leave will be paid the difference between their daily military pay and their daily rate of pay for the duration of the military leave. If the military pay exceeds the individual's rate of pay, the School Board will not pay the individual their salary during that portion of leave. It is the responsibility of the individual taking Military Leave to submit a copy of their military pay voucher or LES to the Payroll Office as soon as it is received to make proper paycheck adjustments. If a copy of the military pay voucher or LES is not received within one (1) pay period of the start of the military leave period, LCPS pay may be stopped. Upon submission of the voucher or LES appropriate adjustments will be made by Payroll.
- E. An employee may elect to continue LCPS group health insurance during their military leave period. The employee will be responsible for the employee portion of the monthly health insurance premium to continue coverage. The employee portion may be deducted from the LCPS pay if the employee is receiving pay. In cases where the employee is not receiving pay from LCPS, or the pay is not sufficient to cover the health insurance premium contribution, the employee may make monthly payments to LCPS. If no contributions are remitted, the insurance will be canceled retroactive to the last payment date.
- F. For employees whose military leave or period of service exceeds 30 days, if they did not provide in writing an intent to return to their positions prior to taking Military Leave, the employees will be reinstated to their previous positions, to positions

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comparable to their previous positions, or as otherwise required by applicable law provided:

1. They present documentation establishing eligibility for reinstatement, such as: copies of their DD Form 214 Certificate of Release or Discharge from Active Duty; copies of orders to prepared by the facility where the orders were fulfilled, which carry an endorsement indicating completion of military service; letters from a commanding officer of a personnel support activity or someone of comparable authority; certificate of completions from military training school; discharge certificates showing character of service; copies of or extracts from LES or payroll documents showing periods of service; or letters from the National Disaster Medical System (NDMS) Team Leader or Administrative Officer or equivalent position verifying the employees' dates and times of NDMS training or Federal activation.

2. They submit a request for reinstatement within 90 calendar days of the day after release from active duty.

G. An employee returning from approved Military Leave must contact the Virginia Retirement System with appropriate documentation to apply to receive active-duty military service retirement credit at no cost. Forms and information are available at www.varetire.org.

[Former Regulation 7-70 REG]

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Leg Refs: Code of Virginia, 1950, as amended, § [44-93](#)

38 USC §§ [4301](#) et seq.

[20 CFR Part 1002](#)